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U.S. Department of State Diplomacy in Action

Uzbekistan

Country Reports on Human Rights Practices
Bureau of Democracy, Human Rights, and Labor
2003
February 25, 2004

Uzbekistan is an authoritarian state with limited civil rights. The Constitution provides for a presidential system with separation of powers among the executive, legislative, and judicial branches; however, in practice, President Islam Karimov and the centralized executive branch that serves him dominate political life and exercise nearly complete control over the other branches. Following a January 2002 referendum judged to be neither free nor fair, the President's term in office was extended by 2 years. Previous elections were neither free nor fair. The Oliy Majlis (Parliament) consists almost entirely of officials appointed by the President and members of parties that support him. Despite constitutional provisions for an independent judiciary, the executive branch heavily influenced the courts in both civil and criminal cases and did not ensure due process.

The Ministry of Interior (MVD) controls the police and is responsible for most routine police functions. The National Security Service (NSS)--the former KGB--deals with a broad range of national security questions, including corruption, organized crime, and narcotics. Civilian authorities maintained effective control over the military. The police and the NSS committed numerous serious human rights abuses.

Progress towards economic reform was mixed, including implementation of commitments to transition to a free market. The country had a population of approximately 25,400,000. The economy was based primarily on agriculture and agricultural processing. The Government restored free convertibility of its currency in October. Restrictions on trade were severe, and interference with economic activity by the Government continued. The International Monetary Fund estimated that GDP growth was 1 percent. There were no reliable unemployment statistics, but the number of unemployed and underemployed was widely considered to be high and growing.

The Government's human rights remained very poor, and it continued to commit numerous serious abuses. Citizens could not exercise the right to change their government peacefully. Security force mistreatment likely resulted in the deaths of at least four citizens in custody. Police and NSS forces tortured, beat, and harassed persons. Prison conditions remained poor. Serious abuses occurred in pretrial detention. Those responsible for documented abuses rarely were punished. Police and NSS arrested persons the Government suspected of extremist sympathies, although fewer than in previous years. Police routinely and arbitrarily detained citizens to extort bribes. Several human rights activists and journalists were arrested in circumstances that suggested selective law enforcement. The

number of persons in prison for political or religious reasons, primarily individuals the Government believed were associated with extremist Islamic political groups but also members of the secular opposition and human rights activists, was estimated to be between 5,300 and 5,800. Police and NSS forces infringed on citizens' privacy.

The Government employed official and unofficial means to restrict severely freedom of speech and the press, and an atmosphere of repression stifled public criticism of the Government. Although the law prohibits formal censorship, the Government warned editors that they were responsible for the content of their publications, and new amendments to the media law encouraged self-censorship. Ordinary citizens remained circumspect in criticizing the Government publicly. The Government continued to ban unauthorized public meetings and demonstrations, and police forcibly disrupted a number of peaceful protests, although the number of peaceful demonstrations on specific grievances increased during the year. Although the Government registered one independent domestic human rights group during the year, it continued to deny other groups registration. The Government restricted freedom of religion and harassed and arrested well over 100 Muslims it suspected of extremism. The Government tolerated the existence of minority religions but placed limits on their activities. The Government restricted freedom of movement within the country; exit visas were required to travel abroad. The Government denied the registration applications of two opposition parties and harassed opposition members; however, three opposition parties were able to organize at the local level, conduct signature drives, and hold regional and party congresses. The Government harassed and abused members of domestic human rights groups. Societal violence against women was a problem. Trafficking in women and children to other countries for prostitution was a problem, which the Government took steps to address.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no confirmed reports of political killings; however, in three separate incidents in May and December, prisoners died in custody, apparently as a result of torture. Another suspicious death occurred in August.

On May 3, Otzama Gafarov, who was finishing a 7-year sentence on charges of stealing state property, died in Chirchik prison. Family members reported that the body showed signs of torture, including bruising and a large laceration on the head and severe bruises to the chest, ribs, and throat.

On May 15, Orif Ershanov, a member of the banned extremist Party of Islamic Liberation (Hizb ut-Tahrir), died at a hospital in Karshi as a result of beatings and torture suffered while in NSS detention. Photographs provided by relatives showed evidence of a severe beating: Bruises to the chest, legs, and soles of the feet, as well as broken ribs and wounds on the back and arm. There was also evidence that sharp objects had been inserted under the fingernails.

On August 1, the parents of Nodir Zamonov found his body in the family cowshed in Bukhara shortly after police detained him on charges of breaking a shop window. A picture taken by the father showed a wide diagonal abrasion across the throat. Local authorities contended that Zamonov hanged himself, while family members maintained that police killed him while he was in custody.

On December 6, Kamalodin Djumaniyozov, a 25-year-old man from Karakalpakstan, died in pretrial detention. A videotape of the body, taken by family members after an autopsy was performed and the body returned, appeared to show bruising on the right and left sides of the torso and on the right upper arm, as well as possibly on the right

hip and upper chest. The right shoulder appeared to be dislocated. The videotape also showed two semi-circular indentations, with what appeared to be fresh lesions, on the corners of the temples.

Human rights observers believed that many more prisoners died as a result of poor prison conditions aggravated by severe mistreatment (see Section 1.c.). In some cases, law enforcement officials warned families not to talk about their relatives' deaths, which were often attributed by government officials to purely natural causes. The country's regulations require that a medical examiner investigate every death in custody; however, examiners' reports routinely misstated the cause of death or covered up abuses. In many cases (including death penalty cases), families were not told of their relative's death until after the body had been buried, making independent forensic investigation almost impossible. As a result, rumors of detainees dying in custody as a result of mistreatment abounded but were generally impossible to confirm. In no case in which a death in custody appeared to be due in whole or in part to torture or other mistreatment was the death officially attributed to such causes. In the cases described above, authorities denied that any physical mistreatment had taken place and ascribed the cause of death to a heart attack (Gafarov), high blood pressure (Ershanov), and suicide (Djumaniyozov and Zamonov).

The Government reported that the MVD disciplined several officers in connection with Kamalodin Djumaniyozov's death. The officers associated with the Djumaniyozov death were punished for official negligence, not for murder or assault; the investigating authorities did not dispute the conclusion reached by local investigators that Djumaniyozov hanged himself in his cell. In late December, the Office of the General Prosecutor opened an official criminal investigation into Djumaniyozov's death. The investigation was continuing at year's end.

In December, the General Prosecutor reopened the investigation into Nodir Zamonov's death; however, no charges were filed by year's end.

By year's end, the Government did not bring charges against those responsible for the apparent torture deaths in custody during the year of Otzama Gafarov and Orif Ershanov.

During the year, there were no developments or investigations in the following 2002 deaths in custody: Mirzakomil Avazov and Khusnuddin Olimov, members of Hizb ut-Tahrir who were tortured to death in Jaslyk prison in Karakalpakstan resulting in extensive bruises and burns, the latter reportedly caused by immersion in boiling water; Izatulla Muminov, a taxi driver who was beaten to death while in police detention in Tashkent; and Musurmon Kulmuradov, who was beaten and tortured to death in front of his mother, wife, and two children while in police custody in Surkhandarya. However, Avazov's mother was arrested in October, allegedly for possessing extremist literature, a charge that she and her family disputed (see Section 1.d.).

An MVD investigation into the 2001 death in custody of Uzbek writer Emin Usman, the results of which were released in December, concluded that he committed suicide, reportedly because he regretted having translated Hizb ut-Tahrir literature. This contradicted the view of human rights activists and at least one family member, who claimed at the time that Usman had been tortured to death.

There were reports of at least seven deaths as a result of landmine explosions along the Tajik and Kyrgyz borders. Uzbek military forces placed landmines in a number of border areas after the Islamic Movement of Uzbekistan (IMU) staged armed incursions in August and September 2000. The Ministry of Defense asserted that all minefields were marked clearly and that it had informed the Tajik and Kyrgyz Governments of their locations, which local residents disputed.

During the year, border patrols killed one Kazakh citizen and injured another in shooting incidents along the border

with Kazakhstan. There were credible reports that two Kyrgyz citizens were shot and killed in separate incidents in July and August along the border with the Kyrgyz Republic. The Government confirmed that on October 10 its border guards shot and killed two Uzbek citizens and injured a Kyrgyz citizen, who were trying to smuggle cotton across the border into the Kyrgyz Republic. Kyrgyz press reported that Uzbek border guards killed a total of eight Kyrgyz citizens during the year.

b. Disappearance

On March 23, police in Chirchik detained Hasan Kambarov, a member of the opposition Erk party, and held him incommunicado until May 14. Relatives alleged that police subjected Kambarov to electric shock and suffocation. Family and associates in Erk report that he was re-arrested on May 22. On July 15, relatives reported meeting a man who claimed to have shared a cell with Kambarov and stated that he appeared to have been beaten. Officials later acknowledged that Kambarov had been in custody from July 10 to 15, allegedly serving an administrative sentence for insulting a shopkeeper in a bazaar. Officials filed no other charges against Kambarov and denied that he was in their custody at any other time. There were reports that Kambarov escaped custody in November and left the country.

Kyrgyz sources reported that members of the Uzbek security services abducted Sadykjan Rahmanov, a Kyrgyz citizen who served as the mullah of a mosque in a southern region of the Kyrgyz Republic. Rahmanov reportedly remained in Uzbek custody at year's end; however, the Government denied this allegation. Unconfirmed reports in the Kyrgyz media alleged that Uzbek security services kidnapped other Kyrgyz citizens, most of whom had earlier lived in Uzbekistan.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

Although the law prohibits such practices, both police and the NSS routinely tortured, beat, and otherwise mistreated detainees to obtain confessions or incriminating information. Police and the NSS allegedly used suffocation, electric shock, rape, and other sexual abuse; however, beating was the most commonly reported method of torture. Torture was common in prisons, pretrial facilities, and local police and security service precincts, and the severity of torture did not decrease during the year (see Section 1.d.). In November 2002, the U.N. Special Rapporteur on Torture, Theo Von Boven, visited the country and concluded in his February report that "torture or similar ill-treatment is systematic." The Government initially informed Von Boven that it had investigated all cases in his report and could not confirm any of the allegations. However, in a statement to the press on March 19, then State Advisor for Foreign Policy Abdul Aziz Kamilov acknowledged that serious abuses occurred in Uzbek prisons and pretrial detention facilities and pledged that the Government would "use all the resources in its possession" to combat abuses.

Authorities reportedly routinely beat and treated prisoners suspected of extremist Islamic political sympathies, particularly alleged members of Hizb ut-Tahrir, more harshly than criminals, regardless of whether investigators were seeking a confession. A majority of the cases over the past few years in which persons were likely tortured to death while in custody involved suspected Hizb ut-Tahrir members. Local human rights workers reported that common criminals--known as "prison boxers"--were often paid or otherwise induced to beat Hizb ut-Tahrir members.

There were numerous credible reports that authorities in several prisons mistreated Hizb ut-Tahrir members in connection with a series of prison demonstrations that took place during the month of Ramadan. According to relatives of prisoners and local human rights activists, well over 100 inmates jailed on charges of Hizb ut-Tahrir membership staged hunger strikes and other protests in October to demand that prison authorities adjust labor and

eating schedules to accommodate the Ramadan fast. The protests began in the Jaslyk prison in Karakalpakstan, but spread to penal facilities in Karshi, Zarafshan, and Navoi. In response to these demonstrations, several prisoners were reportedly beaten in Jaslyk, while in Karshi more than 100 Hizb ut-Tahrir prisoners were placed in punishment cells, where the heat was turned off and the prisoners made to sleep on the floor; many of these prisoners were also reportedly beaten.

On January 21, NSS officers arrested Imam Toshmuhammad Abilov and seven other men in the town of Istikhan, near Samarkand. While in pretrial detention, NSS interrogators reportedly subjected them to regular beatings, some lasting several hours, in attempts to force the men to write letters implicating themselves and the Imam. Several other Hizb ut-Tahrir suspects held in the same facility were reportedly subjected to the same treatment. The men were later found guilty of violating several articles of the criminal code, including anti-constitutional activity and illegal religious activities, and sentenced to prison terms ranging from 4 to 11 years. As a result of the beatings and the prisoners' 11-month incarceration in damp concrete cells, the men suffered a number of health problems, among them chronic dizziness, damaged hearing, and heart, lung, and liver problems. The Imam suffered a broken bone in his chest following one of the beatings. The men were released in late December, when the Chairman of a regional court in Samarkand ruled that the charges under which they were originally convicted were groundless.

Human rights activist Akhmed Madmarov reported that his three sons, imprisoned in 1999, 2000, and 2001 on charges of Hizb ut-Tahrir membership, continued to be mistreated in prison; the eldest, Abdullo Madmarov, was held in solitary confinement in a Tashkent Oblast prison from May to October and was believed to be suffering from tuberculosis.

Allegations of torture also emerged in connection with the case of independent journalist and human rights activist Ruslan Sharipov (see Section 2.a.).

There were continued reports that police detained and in some cases beat members of the opposition Erk Party (see Sections 1.b. and 3).

There were reports that police beat journalists and members of Jehovah's Witnesses (see Sections 2.a. and 2.c.).

Authorities released human rights activists Elena Urlaeva in December 2002 and Larissa Vdovina on January 29, both of whom were detained for involuntary psychiatric treatment in 2002. The two women were detained for a number of hours on several occasions during the year in connection with their anti-government protests (see Section 2.b.). Urlaeva continued at year's end to fight government efforts to have her declared legally incompetent. Vdovina reportedly lost her appeals and left the country.

Defendants in trials often claimed that their confessions, on which the prosecution based its cases, were extracted by torture (see Section 1.e.).

In May, the Government formed an inter-agency committee, chaired by Akmal Saidov of the National Center for Human Rights, to develop an action plan to address the recommendations made by the U.N. Special Rapporteur on Torture in his February report. In September and October, drafts of the action plan were discussed at meetings of foreign embassies and local and international nongovernmental organizations (NGOs). The Government did not release the final version of the action plan by year's end, despite its previous announcement that it would do so by the end of November. Nevertheless, the Government began to implement some of the Rapporteur's recommendations during the year. In August, Parliament passed an amendment to the section of the Criminal Code that deals with torture, encompassing a broader range of maltreatment and spelling out more precisely the

subsequent punishments. According to information provided by the Ministry of Foreign Affairs, 15 law enforcement officers were convicted under the revised law. The MVD and the Ministry of Justice (MOJ) have established internal human rights bodies to vet promotions and to investigate specific instances of human rights abuse. It was unclear whether either body was involved in these convictions.

Prison conditions remained poor, and there continued to be reports of severe abuses in prisons. However, anecdotal evidence from former prisoners and local human rights workers suggested that there were limited improvements in some prisons, which they attributed to the international community's monitoring activities. Prison overcrowding was a problem, with some facilities holding 10 to 15 persons in cells designed for 4. Overcrowding may have been one of the reasons for annual large-scale amnesties since 2001, but the problem remained severe. Tuberculosis and hepatitis were epidemic in the prisons, making even short periods of incarceration potentially deadly. Reportedly there were shortages of food and medicines in several prisons, and prisoners often relied on visits by relatives to obtain both.

In the early part of the year, the Government completed an amnesty of 5,000 prisoners that was announced in December 2002 (see Section 1.e.). Most of these were ordinary criminals, but it is likely that a substantial number of the 4,400 to 4,900 individuals who had been arrested since 1999 for suspected religious extremism but convicted under other charges also received amnesty. Another amnesty was declared on December 1; by year's end, several thousand prisoners had been released. In all of these amnesties, prisoners were reportedly forced to sign letters of repentance to be released under the amnesty; there were allegations that some prisoners who refused to do so were subjected to physical mistreatment.

Conditions remained particularly poor in Jaslyk Prison, a maximum-security facility that held approximately 450 inmates. Authorities specifically built the prison to hold political or religious prisoners arrested since 1999. A large majority of Jaslyk's inmates were charged with membership in banned Islamic extremist organizations. The prison is located in a remote area of Karakalpakstan, where temperatures can exceed 120 degrees in the summer and 10 degrees in the winter. There were numerous reports of severe mistreatment at Jaslyk, the most serious of which involved the 2002 deaths of Mirzakomil Avazov and Khusnuddin Olimov, who were likely tortured with boiling water.

Men and women were held in separate facilities. Conditions were worse for male than for female prisoners, although a local human rights activist in frequent contact with the families of female prisoners reported that some held in a women's prison in the Tashkent area were in ill health as a result of unsanitary conditions. Juveniles were held separately from adults. Conditions in juvenile facilities were generally much better than in adult prisons, although there were reports of inmates working in harsh circumstances. Pretrial detainees were held separately from those convicted of crimes; many of the worst incidences of abuse occurred during pretrial detention. The Government also operated labor camps, where conditions of incarceration were reported to be less severe than in prisons.

There were reports, as in previous years, that inmates died of tuberculosis, attributable in large part to poor prison conditions.

The Organization for Security and Cooperation in Europe's Office for Democratic Institutions and Human Rights (OSCE/ODIHR) initiated a prison reform program in cooperation with the Ministry of Interior.

After a series of delays since 2001, the International Committee of the Red Cross (ICRC) began an intensive regime of prison visits in September 2002. In June, the ICRC reported that it was receiving satisfactory cooperation from authorities: The ICRC's visits were made on short notice and its teams of investigators were given adequate access to all prison facilities and could meet with prisoners without third parties. As of December, the ICRC had conducted

more than 30 visits to prisons and other places of detention, including Jaslyk Prison in Karakalpakstan, and had conducted a number of repeat visits. Foreign observers have also gained access to prisons to meet with individual detainees.

d. Arbitrary Arrest, Detention, or Exile

The law does not provide adequate protection against arbitrary arrest and detention, and these remained problems. The MVD controls the police, which is organized regionally. Impunity remained a problem, and those responsible for abuses were rarely punished (see Sections 1.a. and 1.c.). However, the Government reported that it dismissed 22 investigative officers of the MVD during the year for violating citizens' constitutional rights. The Government undertook investigations and disciplinary actions in connection with the deaths in custody of Kamalodin Djumaniyozov and Nodir Zamonov and sentenced an MVD investigator in connection with the beating of Ravshan Tozhiev.

Corruption among security forces remained a problem. Police routinely and arbitrarily detained and beat citizens to extort bribes. Police in the past routinely planted narcotics, weapons, ammunition, or Islamic literature on citizens either to justify arrest or to extort bribes; however, the number of reports of such cases decreased during the year.

The law provides that police, MVD investigators, and the Procuracy may arrest a person suspected of committing a crime without formal charges being filed, and security forces continued to arrest and detain individuals arbitrarily, without warrants or just cause. A report showing the grounds for arrest must be drawn up immediately and forwarded to the prosecutor; however, the law provides for wide discretion as to what constitutes proper grounds for arrest. This initial period of arrest is limited to 72 hours, but the Prosecutor may extend it for an additional 7 days. At the end of this period, the person must be officially declared a suspect and charged with a crime, or he must be released. Once formal charges are filed, a suspect may be held at the Prosecutor's discretion while an investigation is conducted. At his discretion, the Prosecutor may release a prisoner on bond pending trial. In practice, authorities frequently ignored these legal protections. There is no judicial supervision of detention, such as habeas corpus.

Prosecutors enjoyed near total discretion over most aspects of criminal procedure, including pretrial detention; once charges are brought, suspects may be held in pretrial detention for up to a year. Persons under arrest have no access to a court to challenge the length or validity of pretrial detention. Even when no charges are filed, police and prosecutors sought to avoid restrictions on the length of time a person can be held without charges by claiming that the individual was being held not as a suspect, but as a potential witness, who can be held indefinitely. A defendant has a right to counsel from the moment of arrest, but in practice access to counsel was often denied.

As in previous years, there were reports that police arrested citizens to extort bribes from them or from their family members. On February 23, police arrested 15-year-old Ravshan Tozhiev on charges of colluding in a group robbery scheme at a Tashkent bazaar. Four days later, an officer from the Yunusabad District Police Station approached Tozhiev's mother at the station and reportedly demanded the equivalent of \$600 (600,000 soum). When she refused, Tozhiev was taken by two officers into another room, where they allegedly kicked him in the stomach and groin and made him wear a gas mask and stand leaning with his forehead against a wall, after which they hit him repeatedly on the back of the head. After an hour, his mother was brought into an adjoining office, where she could hear her son's screams; she then agreed to pay. On March 23, a third officer of the Yunusabad Station demanded another \$500 (500,000 soum) to secure Tozhiev's release. At that point, the mother took the case to the Tashkent City Procuracy, which investigated the allegations of police brutality and corruption. On May 27, one of the officers was sentenced to 7 years' imprisonment for attempted bribery; no charges were brought on the accusations of police brutality. On

June 16, Tozhiev, who had been released on a suspended sentence, was re-arrested on charges of stealing a necklace. His mother claimed that when she arrived at the Yunusabad Police Station, she found that her son's torso was covered in bruises and that the right side of his face and neck showed long black and blue marks. Authorities later harassed the mother and threatened to arrest her, implying retribution for her successful complaint regarding police mistreatment of her son.

There were also reports that police arrested persons on falsified charges as an intimidation tactic to prevent them or their family member from exposing corruption or interfering in local criminal activities. On May 8, police arrested 17-year-old Chingiz Suleimanov, without a warrant, on charges of having been involved in a fight. (Suleimanov has mental disabilities, and his parents claimed that he was at home on the night the fight allegedly took place.) The parents speculated that the real reason for the arrest was that earlier in the year they had written to the prosecutor about alleged criminal activities taking place under the protection of local police. The parents stated that they arrived at the Akhangaran District Police Station in time to see their son, whose head was bleeding, being forced into a car. Suleimanov screamed that he was being beaten and begged his parents to help. The parents reported that they were unable to meet with their son but that investigators told them that their son had been arrested to silence the family and would be beaten to death if they persisted in interfering in matters that were none of their concern or complained about their son's treatment. During his trial, Suleimanov maintained his innocence and that he had been beaten. The parents reported that the judge dismissed the allegations, responding that the country's police do not beat people (see Section 1.e.). On June 25, the judge sentenced Suleimanov to 5 years' imprisonment on charges of hooliganism and theft. Before transferring him to the Tashkent Youth Prison, authorities took him back to the Akhangaran Police Station on the judge's orders, where his parents claim he was beaten again.

In most ordinary criminal cases, police generally identified and then arrested persons who could be reasonably suspected of the crime; however, both the police and the NSS were far less discriminating in cases involving perceived risks to national security.

Authorities continued to arrest many individuals associated with Islamic groups that were not approved by the Government (see Section 2.c.). During the year, the Government arrested an estimated 300 to 500 persons on suspicion of Islamic extremism, a decrease from previous years. In general, the Government believed these individuals to be associated with Hizb ut-Tahrir, although often the individuals had merely attended Koranic study sessions with the group (see Section 2.c.). Since such sessions are an integral part of Hizb ut-Tahrir's recruitment mechanism, authorities made little distinction between actual members and those with marginal affiliation. Several young men testified at their trials that they attended the sessions only because they wanted to learn about Islam. Officially approved mosques were incapable of meeting the demand for Koranic instruction, and there were few other officially approved forums for such instruction. As in previous years, there were reports that authorities arrested and prosecuted persons based on the mere possession of Hizb ut-Tahrir literature, which observers claimed was often planted. Coerced confessions and testimony were commonplace. Even persons generally known to belong to Hizb ut-Tahrir stated that the cases against them were built not on real evidence, which would have been abundantly available, but on planted material or false testimony.

On October 19, after searching her house and allegedly discovering Hizb ut-Tahrir literature, police arrested Fatima Mukhadirova, the mother of Muzafar Avazov, who died in Jaslyk Prison in August 2002 after apparently being submerged in boiling water (see Sections 1.a. and 1.e.). Mukhadirova claimed that the materials were not hers. Persons familiar with the family maintained that authorities had warned her not to speak about her son's case. At year's end, Mukhadirova remained in prison, awaiting trial on charges of anti-constitutional activities and religious extremism.

Authorities continued to arrest and detain human rights activists arbitrarily. Many observers described the arrest and conviction of human rights activist and independent journalist Ruslan Sharipov as an example of selective prosecution (see Sections 1.c. and 2.b.). On August 28, four masked men abducted and severely beat Surat Ikramov, a prominent human rights activist who had been representing Sharipov. The Ministry of Interior launched a high-level investigation of Ikramov's beating; the results of the investigation were pending at year's end. On August 28, a court in Andijon arraigned Saidjahon Zainabitdinov, Chairman of the Andijon branch of the Human Rights Society of Uzbekistan (HRSU), on charges of criminal defamation in relation to two articles that he wrote about police corruption. His case was dismissed in December, and Zainabitdinov continued his active human rights advocacy, meeting frequently with international observers both in the country and abroad. Police have detained other human rights activists for short periods of time, and on occasion handled them roughly, in the course of public demonstrations (see Section 2.b.).

In early April, police arrested a farmer from Kashkadarya who had championed land reform initiatives and became active in rural human rights on charges of economic mismanagement. Numerous credible reports indicated that he, along with another prominent local activist, had run afoul of a politically connected collective farm manager. Later that month, neighbors of the second activist assaulted two of his brothers, sending them to the hospital with serious injuries. The neighbors reportedly were acting under orders from the collective farm manager. The first activist was released on appeal in July but immediately came under renewed pressure from local authorities. Facing harassment from local police and prosecutors, the two activists and several members of their families left the region.

The Government on occasion arrested, detained, and mistreated both immediate and extended family members of individuals wanted in connection with Islamic activities or already jailed in connection with those activities, even if there was scant evidence of their individual involvement (see Section 1.f.).

The Government released all six of the human rights activists whose conviction and imprisonment were reported in 2002. On January 3, the Government amnestied Yuldash Rasulov, an HRSU member who was sentenced in September 2002 to 7 years' imprisonment on charges of anti-constitutional activities and distributing extremist literature. On July 22, Norpolat Rajabov and Musulmonqul Hamroyev, HRSU activists from Kashkadarya who were sentenced in September 2002 to 4 and 6 years' imprisonment on charges stemming from their roles in organizing protests against a corrupt collective farm manager, were released from prison. Their colleague Jora Murodov, who was convicted at the same time and given a similar sentence, was released on August 22. HRSU activist Tursunbay Utamuratov, who was sentenced in November 2002 to 9 years' imprisonment for tax evasion, assault, resisting arrest, and forgery, was released on October 6. Human rights activists Elena Urlaeva and Larissa Vdovina, who had been committed in August 2002 to involuntary psychiatric treatment, were released in December 2002 and January 29, respectively (see Sections 1.c. and 2.b.) Jakhongi Shosalimov, a member of the Independent Human Rights Organization of Uzbekistan (IHROU) who was convicted in September 2002 of inciting public unrest and disobeying police orders, was released after 15 days' imprisonment (see Section 4).

During the year, pretrial detention for individuals suspected of Islamic extremism typically ranged from 2 to 4 months, a decline from previous years due in large part to reduced case loads. (Previously, pretrial detention was known to last as long as 2 years.) The number of such prisoners in pretrial detention was unknown.

Members of the opposition Erk Party were subject to severe harassment, including arbitrary detention, surveillance, and physical abuse (see Sections 1.c. and 3). On October 13, two prominent Erk activists, Oygul Mamatova and Abdulhashim Gafurov, were taken into detention after police discovered a large quantity of books written by Erk's exiled leader Muhammad Solih in their car. Police also confiscated from their homes a large sum of cash, as well as Erk Party literature, membership lists, computer hard-drives, and other material related to their political and human

rights work. The two Erk activists were later released and staged brief hunger strikes to protest their detention and the seizure of party property. Authorities informed Mamatova and Gafurov that they would face prosecution for anti-constitutional activities; at year's end, no formal charges had been filed and the two remained free.

There were reports that authorities detained Judge Abduzhashe Alikulov under house arrest, after allegedly forcing him to resign because he dismissed charges against five persons accused of murder, on the grounds that testimony coerced during pretrial detention was inadmissible (see Section 1.e.).

Following fighting with the IMU in 2000, the Government forcibly resettled 5 villages in the Surkhandarya region and tried and convicted 73 villagers for crimes against the Constitution and aiding terrorists. The villagers were not released by year's end.

According to human rights activists, police arrested eight women during the year in connection with peaceful demonstrations protesting the imprisonment of their male relatives on charges of Hizb ut-Tahrir membership (see Section 2.b.). All were given suspended sentences and released, although one was re-arrested on an unrelated charge later in the year. Many more were detained briefly without charge and released soon after. There were reports that many of these women were given administrative fines.

Neither the Constitution nor the law explicitly prohibits forced exile; however, the Government did not employ it. Government harassment of the Erk and Birlik opposition political parties drove their leaders--including Mohammed Solikh and Abdurakhim Polat, respectively--into voluntary exile in the early 1990s (see Section 3). The de-facto leader of the newly formed Free Farmer's Party, Babur Malikov, remained in voluntary exile at year's end, as did the chairman of the HRSU, Abdumannob Polat, Abdurakhim's brother (see Section 4).

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary; however, the judicial branch takes its direction from the executive branch, particularly the Office of the Procuracy, and had little independence in practice. Under the Constitution, the President appoints all judges for 5-year terms and has the power to remove judges. Removal of Supreme Court judges must be confirmed by Parliament. Judges may be removed for crimes or failure to fulfill their obligations. The process of appointing and removing judges is non-transparent and largely non-objective. Corruption among judges remained a problem.

Judges continued to have little independence. Judges deferred to the decisions of prosecutors, with relatively few exceptions such as the release of eight men convicted of Hizb ut-Tahrir membership and the dismissal of a case involving a member of the Jehovah's Witnesses (see section 2.c.). Legislative reforms aimed at strengthening the independence of the judiciary were enacted in 2000 and 2001 but have produced few results.

Courts of general jurisdiction are divided into three tiers: District courts, regional courts, and the Supreme Court. In addition, a Constitutional Court is charged with reviewing laws, decrees, and judicial decisions to ensure their compliance with the Constitution. Military courts handle all civil and criminal matters that occur within the military. There is a system of economic courts at the regional level that handles economic cases between legal entities. Decisions of district and regional courts of general jurisdiction may be appealed to the next level within 10 days of ruling. Crimes punishable by death are murder, espionage, and treason.

Three-judge panels generally preside over trials. The panels consist of one professional judge and two lay assessors who serve 5-year terms and are selected by either workers' collectives' committees or mahalla (neighborhood) committees. The lay judges rarely speak, and the professional judge often defers to the recommendations of the prosecutor on legal and other matters.

State prosecutors play a decisive role in the criminal justice system. They order arrests, direct investigations, prepare criminal cases, and recommend sentences. If a judge's sentence does not agree with the prosecutor's recommendation, the prosecutor has a right to appeal the sentence to a higher court. There is no protection against double jeopardy. In the past, judges whose decisions were overturned on more than one occasion could be removed from office. In 2001, Parliament repealed this provision of the law, but other institutional controls remained in place, such as the executive's authority to decide which judges to reappoint. Consequently, judges in most cases continued to defer to the recommendations of prosecutors. As a result, defendants almost always were found guilty.

Officially, most court cases are open to the public but may be closed in exceptional cases, such as those involving state secrets, rape, or young defendants, victims, or witnesses. Unlike in past years, when trials of alleged Islamic extremists were often closed, local and international trial monitors and journalists were generally permitted to observe court proceedings during the year.

Defendants have the right to attend the proceedings, confront witnesses, and present evidence. The accused has the right to hire an attorney, and the Government provides legal counsel without charge when necessary. However, state-appointed attorneys, whom the Government contracts and pays, routinely acted in the interest of the state rather than of their clients. Nonetheless, authorities often violated the right to an attorney in the pretrial stage, and judges in some cases denied defendants the right to their attorney of choice. Defense counsel was often incompetent, and effective cross-examination of even the most fatally flawed prosecution witnesses rarely occurred. In most cases, the role of defense counsel was limited to submitting confessions and pleas for mercy. Lawyers from the privately funded Legal Aid Society of Tashkent were much better trained, but their resources were extremely limited; their five lawyers typically only took more high-profile political cases. Prosecutors normally only attended those sessions of the court in which they were scheduled to speak. Court reporters tended to take poor notes and very often put down their pens when the defense was speaking. Some courts reportedly refused to allow defense counsel access to trial transcripts on appeal.

The Government announced trials, including those of alleged religious extremists, only at the court in which the trial was to take place and only a day or two before the trial began. International observers generally were allowed to attend even the most sensitive trials. However, during the trial of Ruslan Sharipov, the presiding judge closed the court to all but Sharipov's defense team and close family members, citing the need to protect underage witnesses and testimony (see Sections 1.c. and 2.a.).

Defendants often claimed that the confessions on which the prosecution based its cases were extracted by torture. On August 11, the Government tried 12 men at Tashkent's Akmal Ikramov District Court in connection with their alleged membership in Hizb ut-Tahrir. During the trial, which was attended by members of the diplomatic and NGO community, one of the principal witnesses recanted his previous written testimony, alleging in court that he had been forced to write his statement after being beaten severely at a local MVD office. Three of the defendants stated that they had been tortured in the course of their interrogations. A family member of a fourth defendant, Mukhammad Rashidov, later claimed that he had been badly beaten in pretrial detention (see Section 1.f.). The presiding judge did not follow up on these allegations and all 12 were convicted.

The presiding judge dismissed allegations of torture that emerged in the June trial of Chingiz Suleimanov (see Section 1.d.).

In other cases, particularly those of suspected members of Hizb ut-Tahrir, the prosecution failed to produce confessions and relied solely on witness testimony, which was reportedly often coerced. The accused were almost always convicted. Typical sentences for male members of Hizb ut-Tahrir ranged from 7 to 12 years' imprisonment.

Lawyers may, and occasionally did, call on judges to reject confessions and to investigate claims of torture; however, in almost all cases, the judge simply ignored claims of torture, or dismissed them as groundless. The one reported exception to this occurred on March 10, when a court in Fergana City dismissed charges against five persons charged with murder on the grounds that testimony that had been coerced during pretrial detention was inadmissible under the law. However, the next day representatives of the administration apparently visited Judge Abduzhashe Alikulov and forced him to resign. There were reports that Judge Alikulov has been put under house arrest and that the prosecutor was also disciplined.

The Constitution provides a right of appeal to those convicted; however, appeals rarely, if ever, resulted in convictions being overturned in politically sensitive cases, such as those involving individuals accused of membership in Hizb ut-Tahrir. More often, a successful appeal resulted in a reduced sentence. An exception to this occurred in late December, when the chairman of a regional court in Samarkand released eight alleged members of Hizb ut-Tahrir imprisoned for long terms at the beginning of the year (see Section 1.c.). In releasing the men, the judge essentially ruled that the charges under which they were originally convicted were groundless.

Even in the rare instance when defendants were acquitted or win an appeal, no protection exists against double jeopardy. The five defendants acquitted of murder charges in Fergana City in March were reportedly under investigation once again for the same crime.

Unlike in past years, most persons arraigned on political crimes during the year were charged with the actual crime for which they were arrested, particularly anti-constitutional activity, involvement in illegal organizations, including banned religious or political groups, and the preparation or distribution of material threatening to public security. An estimated 5,300 to 5,800 political prisoners, including alleged members of Hizb ut-Tahrir, remained in prison at year's end. The ICRC conducted regular prison visits throughout the year and reported that it was given access to political prisoners (see Section 1.c.).

In late 2002 and early in the year, the Government released 923 political prisoners. The convictions of the political prisoners released in these amnesties were specifically for anti-constitutional activity. Their release came as part of a broader amnesty of approximately 5,000 prisoners (see Section 1.c.). An additional 391 political prisoners were released in the first month of a 3-month amnesty declared on December 1, the vast majority of whom were sentenced for membership in Hizb ut-Tahrir or other extremist groups labeled under the general rubric of "Wahabbi." More than half of these had originally been sentenced to jail terms exceeding 10 years. Although the December 1 decree lays out in strict terms which inmates were eligible for release, in practice, local prison authorities had considerable discretion in determining who was reviewed for amnesty. As in previous years, political prisoners were required to demonstrate that they had "firmly repented," usually expressed in the form of a letter. Many inmates reportedly refused to sign such letters, in spite of considerable pressure for them to do so. Prisoners released under the amnesty reported that imams had been sent to the prison to make the final determination as to which prisoners had truly repented; this decision was reportedly frequently taken in consultation with local mahalla committees.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution provides for the inviolability of the person and prohibits unlawful detentions and searches; however, in practice, authorities infringed on these rights. The law requires the issuance of a search warrant for electronic surveillance by the relevant Prosecutor; however, there is no provision for a judicial review of such warrants. There is an assumption that security agencies routinely monitor telephone calls and employ surveillance and wiretaps in the cases of persons involved in opposition political activities.

Government officials interfered with correspondence sent to and by members of the opposition Erk Party.

The Government continued to use mahalla committees, of which there were an estimated 12,000, as a source of information on potential extremists. Neighborhoods are tightly knit communities, where residents have few secrets. Shortly after the February 1999 Tashkent bombings, the President directed that each committee assign a "neighborhood guardian," or "posbon," whose job it was to ensure public order and to maintain a proper moral climate in the neighborhood. In practice, this meant in particular preventing young persons in the neighborhoods from joining extremist Islamic groups. According to a report on mahalla committees released by Human Rights Watch (HRW) in September, the committees kept extensive files on families in the neighborhood and collected information on individual family members' religious practices. Mahalla committees frequently identified for police those residents who appeared suspicious. Some of these individuals were then arrested or detained, sometimes more than once.

The HRW report documented several instances in which local authorities forced relatives of alleged religious extremists to undergo public humiliation at assemblies organized for that purpose. Human rights activists in the Fergana Valley claimed that officials from the local MVD often joined mahalla committee members in these denunciation sessions.

The Government on occasion arrested, detained, and mistreated both immediate and extended family members of individuals wanted in connection with Islamic activities or already jailed in connection with those activities, even if there was scant evidence of their individual involvement (see Sections 1.c. and 1.d.). Local human rights activists reported that officials of the security service, acting under pressure to break up Hizb ut-Tahrir "cells," often targeted family members and close associates of suspected members, even if there was no direct evidence of their involvement. Seven male relatives of Imam Farhod Usmanov, a member of Hizb ut-Tahrir who died in pretrial detention in 1999, remained in jail at year's end. On August 11, Mukhammad Rashidov, Usmanov's 17-year-old nephew, was convicted with 11 other defendants on charges of Hizb ut-Tahrir membership (see Section 1.e.). Serious allegations of torture emerged, both in the course of court testimony and in discussions with family members (see Section 1.c.), with the principal witness denying that he had ever seen Rashidov.

Unlike in previous years, there were no reports that police arrested, detained, and beat family members of suspects they were seeking. However, there were numerous credible reports that police, employers, and mahalla committees increasingly harassed the family members of human rights activists, including those who participated in the EBRD meeting in May, (see Section 4). According to several sources, authorities harassed human rights advocates with less frequency than in previous years, focusing attention instead on their family members.

There were reports that on occasion police arrested, detained, and beat persons to intimidate family members to prevent them from exposing corruption or interfering in local criminal activities or for extortion (see Section 1.c.).

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and the press; however, in practice, the Government continued to restrict these rights severely. Although the Government ended the formal requirement of press censorship in 2002, a number of new amendments to the press law passed shortly afterward hold editors and publishers responsible for the content of articles that appear in their publications.

The law limits criticism of the President. Ordinary citizens generally did not criticize the President or the Government on television or in the newspapers, although they continued to do so more freely in less public settings. The law also specifically prohibits stories that incite religious confrontation and ethnic discord or advocate subverting or overthrowing the constitutional order (see Section 2.b.).

The Cabinet of Ministers owned and controlled the country's three national daily newspapers, Pravda Vostoka, Halq Sozi, and Narodnoe Slovo. Their combined readership likely did not exceed 50,000. The Government owned or controlled several other weekly publications. Newspapers, which cost between 5 and 15 cents (50-150 soum), were too expensive for most citizens.

Private persons and journalist collectives may not establish newspapers unless they meet the media law's standards for establishment of a "mass media organ," including naming a board of directors acceptable to the Government. A small number of private newspapers containing advertising, horoscopes, and similar features, but no news or editorial content, were allowed to operate. There were three private national newspapers, Novosti Uzbekistana, Noviy Vek, and Noviy Den, and one publicly owned newspaper, Hurriyat. Circulation was no more than 3,000 each. At year's end, a fifth daily, Mohiyat, with a circulation of less than 2,000, was in the process of separating from the Government-controlled Turkiston Press. Novosti Nedelya and Vremya I Mi ceased operations during the year, reportedly for financial reasons. The last opposition newspaper to be published, the Erk party's, was banned but was published abroad and occasionally smuggled in. The opposition parties Birlik, Erk, and the Party of Agrarians and Entrepreneurs operated websites, to which the Government reportedly blocked access sporadically.

The Government controlled information even more tightly in the broadcast media than in print journalism. Four state-run channels that fully supported the Government and its policies dominated television broadcasting. A cable television joint venture between the state broadcasting company and a foreign company broadcast the Hong Kong-based Star television channels, including the British Broadcasting Company (BBC), Deutsche Welle, and Cable News Network World News, to Tashkent and a few other locations. Access to cable television was beyond the financial means of most citizens. There were between 30 and 40 privately owned local television stations and 7 privately owned radio stations. These broadcasters practiced self-censorship but enjoyed some ability to report critically on local government. For the most part, television programming consisted of rebroadcasting Russian programming.

The Government did not allow the general distribution of foreign newspapers and other publications; however, two or three Russian newspapers and a variety of Russian tabloids and lifestyle publications were available. A modest selection of other foreign periodicals was available in Tashkent's major hotels, and authorized groups could obtain foreign periodicals through subscription.

There were numerous cases of government harassment of editors and journalists in what appeared to be an effort to limit the publication of overly critical stories. As in the past, Uzbek authorities harassed members of the Independent Union of Journalists of Uzbekistan (IUJU). On May 29, police arrested the former head of the IUJU, Ruslan Sharipov, on allegations of sodomy, corruption of youth, and sex with underage persons, charges that many observers saw as either fabricated or selective prosecution. Sharipov himself maintained that prosecuting him was punishment for his critical articles. Sharipov claimed that at the time of his arrest, police denied him access to a lawyer, hit him several times, and threatened to rape him with a bottle. Sharipov maintained an active defense during the first stages of his

trial, but on August 8 he dismissed his defense team and stated his intention to plead guilty. In letters published on the Internet after his trial, Sharipov claimed that his abrupt confession had been coerced and that he had been subjected to asphyxiation with a gas mask and a plastic bag and told that he would be infected with the AIDS virus. The chair of the panel of judges considering Sharipov's appeal took note of Sharipov's allegations, questioned prison guards and police with access to Sharipov, and ruled that the allegations had no merit.

On August 26, police detained and intensively questioned two of Sharipov's associates, Sukhrat Erzahnov and Alex Surapulov, about their connections to Sharipov. On August 28, masked assailants badly beat Surat Ikramov, a human rights activist who served on Sharipov's defense team; the case was under investigation by the Ministry of the Interior at year's end (see Section 1.d.).

On February 17, police in the Fergana Valley arrested Ergash Bobojanov, a member of the Birlik party, on charges of criminal defamation for writing newspaper articles in 1999 and 2001 that criticized the Government and official corruption. On February 19, the editor-in-chief of the newspaper Adolat, Tuhtamurad Toshev, was arrested on charges of bribery; he was sentenced to 8 years' imprisonment. On May 12, a correspondent of the newspaper Mulkdor, Boimamat Jumaev, was arrested on similar charges; no verdict was reached by year's end. Observers speculated that these represented cases of selective prosecution.

On August 13, an unknown person flagged down Shahnazar Yormatov, a journalist from Koshkupyr in the Khorezm region, on the road near the house of Yormatov's late father. Yormatov stated that the person, who was later revealed to be an MVD officer, pulled Yormatov from his car, punched him in the face, and kicked him several times. After the beating, the officer searched Yormatov's car and pulled out a packet, which the officer stated was heroin. According to Yormatov, his assailant told him that the 15-year sentence that could result would be just punishment for a troublesome journalist. Shortly after, two other officers from the Koshkupyr MVD arrived on the scene and took Yormatov to the local police station. The prosecutor refused to prosecute the heroin charges, and Yormatov was released after 5 days' detention; however, he claimed that police continued to harass him.

A number of other journalists reported receiving threatening phone calls and e-mails throughout the year warning them to be cautious in how they report events. Several of these journalists signed an open letter to the European Bank of Reconstruction and Development (EBRD) criticizing human rights abuses in the country. Some journalists reported that they were warned not to cover demonstrations.

Journalists are responsible for the accuracy of the information contained in their news stories, which potentially subjects them to prosecution. The new amendments to the press law also established the right of the boards of directors of newspapers, whose appointment is effectively subject to government veto, to affect editorial content. The net effect of the changes was an abolition of prior censorship, tempered by new possibilities for both hostile board interference and legalized retribution against media outlets and their employees. Essentially, the burden of censorship shifted from the Government to the publishers and editors--and ultimately to the journalists themselves. Self-censorship was an inevitable byproduct.

Even with the end of official press censorship, information remained very tightly controlled. The Uzbekistan Information Agency cooperated closely with the presidential staff to prepare and distribute all officially sanctioned news and information. After the end of prior censorship, a new organization--the Press and Information Agency--replaced the State Press Committee and became responsible for observing all media. Most editors and journalists continued to express concerns about potential consequences of conducting serious investigative journalism.

Despite the evident risks, a number of print journalists have endeavored to push the boundaries of self-censorship with several critical pieces appearing in newspapers during the year on such topics as local corruption, official malfeasance, and economic difficulties. A few journalists have produced articles critical of the Government. The state-run Pravda Vostoka published articles on official malfeasance, prison conditions, and corruption in the Prosecutor General's office. Vremya I My has reported on the country's economic problems, trafficking in persons, and the inefficient management of the agricultural sector. The Uzbek-language newspaper Mohiyat has published articles criticizing district governors (hokims), bribery among the faculty of tertiary educational institutions, and trafficking in women. In March, another Uzbek-language newspaper Fidokor mentioned a foreign ambassador's critical comments on the slow pace of economic reform.

The Mass Media law established the Interagency Coordination Committee (MKK), which issues both broadcast and mass media licenses to approved media outlets. The law provides for a 1- to 5-year term of validity for broadcast licenses; however, mass media licenses, also required, must be renewed annually. The MKK is empowered to revoke licenses and close media outlets without a court judgment. Another government agency, the Center for Electromagnetic Compatibility, issues frequency licenses. No television stations applied for new licenses during the year. Unlike in previous years, there were few incidents in which independent television stations were forced to operate with expired licenses.

The Government refused to renew the registration of International War and Peace Reporting (IWPR), a London-based NGO dedicated to the training and protection of journalists in areas of real or potential conflict. In explaining its decision, the Government stated that the IWPR was engaged in journalism, not training. The Government later singled out personally IWPR's Project Director in the country with strong criticism. IWPR responded that training of journalists entails on-the-job reporting. Despite the NGO's ambiguous status, IWPR's Project Director continued to work with local and international journalists to produce critical stories about the country's politics, judicial system, and human rights practices. However, IWPR chose to pull its project director out of the country, following a scuffle with MVD officers that occurred as she was reporting on a very small demonstration calling for President Karimov's resignation and the Government's personal criticism of her.

Internews, a foreign funded organization working to enhance the capacity of independent media in the region, continued to provide training and support for independent media. However, its continued inability to obtain accreditation for its local journalists limited its ability to cover governmental functions.

The Government continued to refuse to allow Radio Free Europe/Radio Liberty (RFE/RL) and the Voice of America (VOA) to broadcast from within the country, despite the Government's agreement with RFE/RL to allow this activity. The Government has denied accreditation to RFE/RL and VOA's journalists. As a result, the radio stations relied on unaccredited stringers. Both stations broadcast on short-wave from outside the country. The Government allowed the organizations to hire local correspondents. The BBC World Service was permitted to broadcast on a very low FM frequency and only in the Fergana Valley, which limited the potential audience. The BBC, when it began operations, consented to restrictions that amounted to self-censorship; however, observers agreed that there was no evidence that the BBC actually engaged in self-censorship. The BBC's World Service was permitted to broadcast an additional hour per day, bringing the total to 3: Two 1-hour broadcasts per day in Uzbek, and two 30-minute broadcasts per day in Russian, 7 days per week.

On March 7, several assailants reportedly assaulted Husniddin Kutbiddinov and Yusuf Rasulov, journalists working for RFE/RL and the VOA, respectively, who were covering a demonstration in Tashkent's Old City. In May, Akhmadjon Ibragimov, a producer for the state television was allegedly fired from his job because his network aired

footage of persons sleeping during President Karimov's speech to the EBRD; he was subsequently reinstated. On September 29, a group of 20 women, described as prostitutes, reportedly threatened to break the camera of cameraman Dilmurod Toshboyev; he and Internews correspondent Zohkhirion Ibrohimov were interviewing a local man in Andijon who had been sacked from his mahalla committee. In August, similar tactics were used to break up a demonstration in Fergana City (see Section 2.b.).

Although television and radio programming remained staunchly pro-government and broadcast journalists ran the same risks as their counterparts in the print media, there was on occasion some critical reporting. During the year, Radio Grand aired programs on topics such as the plight of collective farmers who did not receive their salaries and women whom the country's dire economic conditions forced to become prostitutes in the bazaar. Orbita, an independent television station operating in the Angren region, produced relatively objective reports on such topics as the trial of independent journalist Ruslan Sharipov. During the year, Internews began to produce a number of high-quality news programs such as Zamok, which was broadcast in Russian and Uzbek and patterned after the popular Russian program Vremya.

There were no private publishing houses. Generally state-owned printing houses printed newspapers. Religious writings required approval by the Religion Committee censor, which was regarded as being quite strict (see Section 2.c.).

On September 30, the Cabinet of Ministers issued a decree that applies the same requirements to bulletins and newsletters published by NGOs as to other publications. These bulletins and newsletters typically had extremely small print runs, seldom exceeding several dozen, but they were generally among the most critical in their coverage of human rights issues. The Government did not enforce this decree by year's end, but some observers speculated that it could potentially be used to keep unregistered NGOs from publishing information.

In October 2002, the Government formally ended its official monopoly of the Internet. In the past, all Internet service providers were required to route their connections through a state-run server, Uzpak, and the Government filtered access to content that it considered objectionable. The availability of Internet access expanded as the number of service providers and Internet cafes grew. Foreign embassies and local Internet users observed that Internet providers frequently blocked access to websites that the Government considered objectionable. Despite these restrictions, Internet users continued to find ways to defeat these attempts at censorship.

The Government granted academic institutions a degree of autonomy, but freedom of expression remained limited. University professors generally were required to have their lectures or lecture notes approved before the lectures were given; however, implementation of this restriction varied. University professors practiced self-censorship.

Representatives of foreign research organizations have been subject to harassment. On January 18, authorities deported Nikolai Mitrokhin, a researcher with the Moscow-based human rights organization Memorial who has done extensive work documenting the arrest and detention of political prisoners. On August 28, Azizulla Gaziev, an analyst for the International Crisis Group left the country after several hours of intensive questioning by the NSS. The NSS also harassed Gaziev's family for a short period; however, after the harassment stopped, his family was allowed to join him abroad.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for the freedom of peaceful assembly; however, it also states that authorities have the right to suspend or ban rallies, meetings, and demonstrations on security grounds. In practice, the Government

often restricted the right of peaceful assembly. The Government required approval for demonstrations and did not routinely grant permits to demonstrators. Nevertheless, the number of peaceful protests, which ranged from less than a dozen participants for most human rights demonstrations to well over a hundred in demonstrations protesting economic conditions, increased considerably. In some cases, police forcibly disrupted demonstrations; however, members of the security service usually simply observed the demonstrations.

Authorities continued to detain women briefly for organizing protests demanding the release of their jailed male relatives accused of membership in Hizb ut-Tahrir or protesting the conditions of their detention (see Section 1.d.). On May 26, police forcefully broke up a demonstration of approximately 30 female relatives of suspected religious extremists. Police reportedly beat and detained the women in the Khamza District Police Station in Tashkent. Small groups of female relatives held sporadic demonstrations throughout the year in the oblasts of the Fergana Valley; local human rights activists reported that local authorities used pressure from mahalla committees to contain the protests.

On June 9, police in Fergana City forcefully dispersed a dozen or so female protestors, organized by Mutabar Tojibaeva. On August 20, more than two dozen women beat a group of female protestors in Fergana City calling for the resignation of a regional prosecutor. Media accounts describe the attackers as prostitutes hired by local authorities to disrupt the protest. The organizer of the demonstration, human rights activist Mutabar Tojibaeva, reportedly suffered serious injuries to her head and was hospitalized for more than a week. Observers speculated that the August 20 attack was in retribution for Tojibaeva's role in the August 11 strike at the Fergana Oil Refinery (see Section 6.b.).

During the year, human rights activists held a number of very small demonstrations in Tashkent. The demonstrations, which typically numbered no more than a dozen protesters, addressed police abuse, official corruption, housing problems, and economic conditions. The protestors also picketed several times in support of Ruslan Sharipov, and on September 16 held a demonstration in front of the Russian embassy calling for the release of Bakhrom Khamroev, a former leading figure in the opposition Birlik party who was arrested in Moscow on July 20.

For the most part, the authorities appeared content to keep a watchful eye on the proceedings, although there were increased reports of rough handling in the lead-up to Independence Day celebrations on August 31 and September 1. On April 10 and 17, police took a small number of protestors into custody en route to demonstrations at the Presidential Administration; one protestor was beaten. Human rights activists Larissa Vdovina, Elena Urlaeva, and Yuri Konopulov have on more than one occasion suffered minor injuries as police broke up their demonstrations.

Police prevented a number of protests, both by refusing to allow potential demonstrators to leave their homes and by blocking access to planned demonstration sites. Authorities effectively kept under house arrest individuals planning to take part in a protest at the Parliament building on the weekend of the Independence Day celebrations until the holiday was over. Police immediately rounded up the few protestors who made it to the demonstration site and detained them for several hours.

The Constitution provides for freedom of association; however, the Government continued to restrict this right in practice. The Constitution places broad limitations on the types of groups that may form and requires that all organizations be registered formally with the Government in accordance with procedures prescribed by law. While the Law on Political Parties permits the existence of independent parties and permits a wide range of fundraising, it also gives the MOJ broad powers to interfere with parties and to withhold financial and legal support to those opposed to the Government. There were five registered political parties, all controlled by the Government, and four opposition parties, none of which were registered at year's end (see Section 3).

The Government rejected attempts by the opposition Birlik Party and the Party of Agrarians and Entrepreneurs (PAPU) to register but allowed them to hold regional and national congresses during the year (see Section 3). On September 22, Birlik submitted its registration papers to the MOJ. The party resubmitted a revised application on November 24, after its first application was rejected. A final decision on the party's registration was pending at year's end. PAPU received notification on October 22 that its registration application was denied; the party chose not to resubmit its application. The Free Farmer's Party, a spin-off of PAPU, held a national congress on December 6 and gathered signatures in preparation for submitting its registration application. The Government effectively stripped the registration of opposition political party Erk in the mid-1990s, and the party has refused to attempt to reregister, insisting its previous registration remained valid. Erk held a national congress on October 22, its first public event in more than a decade.

The Law on Public Associations and the Law on Political Parties prohibit registration of organizations whose purpose includes subverting or overthrowing the constitutional order, as well as organizations whose names already were registered. In the past, officials used the latter provision to block human rights NGOs and independent political parties from registering by creating another NGO or party with the identical name. No such practice was reported during the year.

The process for government registration of NGOs and other public associations was difficult and time-consuming, with many opportunities for obstruction. Officials at the MOJ stated that the law on nongovernmental, noncommercial organizations, which provides for simple registration requirements, was fully implemented during the year. While NGOs verified that the mechanics of the registration procedure were greatly simplified, the Government clearly retained the ability to hamper registration of organizations that it deemed undesirable. On March 19, the Government officially registered the country's second independent human rights group, Ezgulik, following the 2002 registration of the IHROU.

Other human rights groups, such as the HRSU, Mazlum, and the Mothers Against the Death Penalty and Torture, have been denied registration. Although they did not exist as legal entities, they continued to function (see Section 4). Unregistered NGOs such as these continued to face difficulties operating their organizations during the year. In October, the HRSU resubmitted its registration application, its sixth; results were pending at year's end. The MOJ rejected the registration application of Mothers Against the Death Penalty and Torture in February, reportedly because the organization's name was considered too controversial. The NGO's founder subsequently changed the name to Mothers Against Crimes Against the Individual, but the MOJ had not ruled on the NGO's application by year's end. A December 5 conference featuring the NGO was cancelled when the hotel where the meetings were to be located withdrew its facilities, citing the NGO's unregistered status. The NGO continued to advocate actively on behalf of families of executed prisoners.

A resolution passed by the Cabinet of Ministers on September 30 could potentially disrupt the work of NGOs that rely on newsletters and bulletins to publicize information on their activities. The resolution, which was not enforced by year's end, could also potentially be used to stop the publication of information by unregistered NGOs (see Section 2.a.).

Nonpolitical associations and social organizations usually were allowed to register, although complicated rules and a cumbersome government bureaucracy often made the process difficult. Some evangelical Christian churches and Jehovah's Witnesses congregations found it difficult to obtain registration (see Section 2.c.).

c. Freedom of Religion

The Constitution provides for freedom of religion and for the principle of separation of church and state; however, in practice, the Government restricted this right.

The Government is secular, and there is no official state religion. Although the laws treat all religious confessions equally, the Government shows its support for the country's Muslim heritage by funding an Islamic university and subsidizing citizens' participation in the Hajj. The Government promotes a moderate version of Islam through the control and financing of the Muslim Board of Uzbekistan (the Muftiate), which in turn controls the Islamic hierarchy, the content of imams' sermons, and the volume and substance of published Islamic materials. A small but growing number of unofficial, independent mosques were allowed to operate quietly under the watch of official imams.

The Government continued its harsh campaign against unauthorized Islamic groups it suspected of extremist sentiments or activities. During the year, the Government arrested an estimated 300 to 500 alleged members of these groups, a decrease from previous years, and sentenced them to lengthy jail terms (see Sections 1.d. and 1.e.). The scarcity of independent media and the absence of a centrally located and readily accessible register of court cases made it difficult to determine how many persons were incarcerated for religious reasons. Most of these were suspected members of Hizb ut-Tahrir, a banned extremist party. Although Hizb ut-Tahrir maintained that it was committed to non-violence, the political party's strongly anti-Semitic and anti-Western literature called for secular governments, including in Uzbekistan, to be replaced with a world-wide Islamic government called the Caliphate.

Individuals arrested on suspicion of extremism often faced severe mistreatment, including torture, beatings, and particularly harsh prison regimens and conditions of confinement (see Sections 1.a., 1.c., and 1.d.), and were typically sentenced to between 7 and 12 years in jail. There were credible reports that one known member of Hizb ut-Tahrir died in custody as a result of torture and beatings during the year. Prison authorities reportedly continued to deprive many prisoners suspected of Islamic extremism of the right to practice their religion freely and did not allow them to own a Koran, to pray five times a day, or to observe the Ramadan fast. Those who persisted were reportedly subjected to punishment.

In March, a member of an evangelical Christian church in Karakalpakstan reportedly died of heart failure hours after police badly beat him at a police local station.

Authorities often harassed or arrested family members of individuals wanted in connection with Islamic activities, or already jailed in connection with those activities. Eight women were tried for participating in or organizing demonstrations demanding the release of male relatives jailed on suspicion of Islamic extremism; all of the women were convicted but received suspended sentences. This represented a decline from 2002, when more than 20 such women were convicted.

In late December, the Chairman of a regional court in Samarkand released eight alleged members of Hizb ut-Tahrir imprisoned for long terms at the beginning of the year, essentially ruling that the charges under which they were originally convicted were groundless (see Section 1.d.). One of these men was the Imam Khatib (head imam) of Samarkand's Istihkan District.

Other than the arrest of Toshmuhammad Abilov, there were no credible reports of security services arresting, detaining, or harassing Muslim leaders perceived to be extremists. However, the Government's campaign against suspected Islamic extremists had repercussions in the wider Muslim community. The Government did not consider repression of these groups to be a matter of religious freedom but, rather, to be directed against those who allegedly wanted to foment armed resistance to the Government. Authorities, often acting on information provided by mahalla

committees, remained highly suspicious of those who were more religiously observant than is the norm, including frequent mosque attendees, bearded men, and veiled women. In practice, this approach resulted in abuses against observant Muslims for their religious beliefs, rather than actions.

The Law on Freedom of Conscience and Religious Organization requires all religious groups and congregations to register and provides strict and burdensome criteria for their registration. Among its requirements, the law stipulates that each group must present a list of at least 100 citizen members to the local branches of the Ministry of Justice. This provision enabled the Government to ban any group simply by finding technical grounds for denying its registration petition. This has had the effect of suppressing the activities of those Muslims who sought to worship outside the system of state-sponsored mosques.

At year's end, the Government had registered 2,153 religious congregations and organizations, 1,965 of which were Muslim. Some churches continued to face obstacles in obtaining registration from the Government. Local authorities continued to block the registration of evangelical Christian congregations in Tashkent, Samarkand, Guliston, Gazalkent, Andijon, Nukus, and Novaya Zhizn.

Jehovah's Witnesses in Tashkent have still been unable to obtain registration, and their members throughout the country claimed that they were subjected routinely to police questioning, search, and arbitrary fines. Police beat a 17-year-old member of the Jehovah's Witnesses in Bukhara region in March. In May, in two separate instances, four members of the Jehovah's Witnesses were detained in Kogan (Bukhara Province) while proselytizing door to door; they later claimed that city police beat them. In early October, the Jehovah's Witnesses reported that a Tashkent high court overturned the conviction for inciting religious hatred of 27-year-old Marat Mudarisov, whom authorities allegedly targeted due to his membership in the Jehovah's Witnesses.

Any religious service conducted by an unregistered religious organization is illegal. Police occasionally broke up meetings of unregistered groups and, according to news reports, members of some Christian evangelical congregations were detained during the year (see Section 1.c.). In August, authorities arrested five men and three women members of the unregistered Baptist Church in the village of Khalkabad in Namangan. The men were sentenced to 10 days' imprisonment for attending services in a private home and reportedly made to pay for the costs of their time in jail. The women were fined \$7 (6,770 soum).

Religious groups are prohibited from forming political parties and social movements (see Section 2.b.).

The religion law prohibits proselytizing and severely restricts activities such as importing and disseminating religious literature. Christians who tried to convert Muslims or who had among their congregations members of traditionally Muslim ethnic groups often faced official harassment, legal action, or, in a number of cases, mistreatment. Christians who avoided any association with proselytizing generally had no problems, and Jews generally were able to practice their religion.

The teaching of religion in schools, as well as to minors without their parents' permission, has been banned since early Soviet times. During the year, the Government began a small religious education pilot program in elementary schools and, in a very limited number of schools around the country, instruction of Islam and Arabic several times a week.

The Government requires that the religious censor approve all religious literature and controls the publication, importation, and distribution of religious literature. The Government discouraged and occasionally blocked the production or importation of Christian literature in the Uzbek language, although Bibles in many other languages were available in Tashkent bookstores. The Muftiate sporadically issued an updated list of all officially sanctioned

Islamic literature. Possession of literature deemed extremist might lead to arrest and prosecution. Religious literature imported illegally was subject to confiscation and destruction. Hizb ut-Tahrir leaflets were categorically prohibited. The Government controlled the content of imams' sermons and the substance of published Islamic materials.

The Government's harsh treatment of suspected religious extremists has generally tended to suppress outward expressions of religious piety. A vague provision of the Religion Law, which did not appear to have been enforced during the year, may serve to suppress outward expressions of religious belief. Nevertheless, women were seen wearing the hijab (the headscarf many local Muslims associate with female modesty) and, less frequently, the veil on the street. Most female university students did not wear the hijab, although there were no known expulsions of women wearing headscarves during the year. There were reports that at least one university had begun readmitting women who were expelled in 1997 and 1998 for wearing the hijab; however, many of the women expelled for wearing religious clothing continued to encounter difficulty gaining readmission. Most young men did not wear beards, which the Government regarded as a sign of extremism.

There was no pattern of discrimination against Jews: Synagogues functioned openly and Hebrew education, Jewish cultural events, and the publication of a community newspaper took place undisturbed. Many Jews have emigrated to Israel and the United States, but this is most likely because of bleak economic prospects and connections to families abroad rather than because of anti-Jewish sentiment. Hizb ut-Tahrir distributed anti-Semitic fliers, the text of which generally originated from abroad; however, these views were not seen as representative of the feelings of the vast majority of the country's population. Christians were generally very well tolerated, provided they did not engage in active proselytizing. However, there were reports of discrimination against Muslims who converted to Christianity.

For a more detailed discussion, see the [2003 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2003/\)](https://2009-2017.state.gov/j/drl/rls/irf/2003/).

d. Freedom of Movement within the Country, Foreign Travel, Emigration, and Repatriation

The Constitution provides for free movement within the country and across its borders; however, the Government severely limited this right in practice. Permission from local authorities was required to resettle in a new city. The Government rarely granted permission to those who wished to move to Tashkent, and local observers reported that a \$100 bribe (97,500 soum) was necessary to obtain the required registration documents. The Government required citizens to obtain exit visas for foreign travel or emigration, but it generally granted these permits routinely for approximately \$5 (4,875 soum). However, during the year several persons whom the Government considered politically sensitive and their families experienced difficulties obtaining visas. An exit visa was not required for travel to most countries of the former Soviet Union; however, beginning in December 2002, the Government severely restricted the ability of its citizens to travel overland to the neighboring countries of the Kyrgyz Republic and Kazakhstan. Overland travelers to Turkmenistan also faced restrictions, while the border with Afghanistan remained closed to ordinary citizens. Citizens attempting to cross the border to neighboring Tajikistan continued to experience significant delays and some restrictions.

All citizens have the right to a passport, and the Government did not restrict this right. Passports serve as both internal identity cards and, when they contain an exit visa, as external passports. Every citizen must carry a passport when traveling inside or outside the country. Police occasionally confiscated these documents. In the past, authorities were more likely to confiscate the passports of political opponents than other citizens. There were no reports during the year of confiscation of political opponents' passports. After International Crisis Group analyst Azizulla Gaziev fled the country on August 28, members of the NSS briefly threatened to confiscate the passports of his family; Gaziev's wife refused to surrender her or her children's passports, and authorities eventually gave the family exit visas and allowed them to leave the country (see Section 2.a.).

Movement within the country by foreigners with valid visas generally was unrestricted; however, visitors required special permission to travel to certain areas, such as Termez, in Surkhandarya Province on the Afghan border.

The Law on Citizenship stipulates that citizens do not lose their citizenship if they reside overseas; however, since the country does not provide for dual citizenship, those acquiring another citizenship lose Uzbek citizenship. In practice, the burden was on returning individuals to prove to authorities that they did not acquire foreign citizenship while abroad.

Following the summer 2000 fighting with the IMU in the Surkhandarya region, the Government forcibly resettled residents of a number of villages from the mountainous border area (see Section 1.d.). The villagers faced permanent impediments to returning to their homes, and the Government built permanent structures in several new settlements approximately 120 miles away. International observers reported that conditions were acceptable in all of the villages but Sherabad, where one half of the village required outside assistance.

The population includes large numbers of ethnic Tajiks, Kyrgyz, and Kazakhs, as well as ethnic Koreans, Meskhetian Turks, Germans, Greeks, and Crimean Tatars deported to Central Asia by Stalin during World War II. Russians and other Slavs also are well represented. These groups enjoyed the same rights as other citizens.

There is no law that provides for the granting of asylum or refugee status to persons who meet the definition in the 1951 Geneva Convention Relating to the Status of Refugees and its 1967 Protocol. In practice, the Government provided some protection against refoulement but forcibly returned some persons to a country where they feared persecution, and it did not grant asylum. In August 1999, the Government agreed that it would not force persons given refugee status by the UNHCR to leave the country. Nonetheless, the Government forcibly returned 11 Afghans who had registered with the UNHCR. Of these, 6 were UNHCR mandated refugees and 5 were asylum seekers.

There were no official statistics, but observers, including the U.N. High Commissioner for Refugees (UNHCR), estimated that there were 6,000 to 7,000 Afghans resident in the country, 2,500 of whom the UNHCR recognized and registered as refugees. Afghans comprised almost all of the UNHCR's refugee caseload. Although the Government in general tolerated the presence of Afghan refugees, the population faced protection problems. The UNHCR reported 32 Afghans in detention, of whom 19 were released after the UNHCR intervened, 2 remained in detention, and the remaining 11 were deported. The UNHCR reported that Afghan refugees had no access to the legal labor force and therefore limited means to earn a livelihood. The UNHCR reported that police rarely harassed mandated refugees.

The UNHCR estimated that there were an estimated 39,000 Tajik refugees in the country. The Government considered asylum seekers from Tajikistan and Afghanistan to be economic migrants and subjected them to harassment and bribe demands when seeking to regularize their status. Such persons could be deported if their residency documents were not in order. The overwhelming majority of the Tajik refugees were ethnic Uzbeks; unlike their Afghan counterparts, the Tajiks were able to integrate into and were supported by the local population. Although most Tajik refugees did not face discrimination and were generally tolerated by the Government, a great number of them only carried their old USSR passport and, under Uzbek and Tajik law, faced the possibility of becoming officially stateless.

Section 3 Respect for Political Rights: The Right of Citizens to Change their Government

The Constitution provides citizens with the right to change their government; however, in practice, citizens could not change their government through peaceful and democratic means. The Government severely restricted freedom of expression and repressed opposition groups and individuals (see Sections 1.c., 1.d., and 2.a.). No independent opposition political parties participated in government or were registered, although the Government allowed unregistered opposition political parties to hold regional and national congresses during the year. The Government is highly centralized and is ruled by a strong presidency. President Karimov and the executive branch maintained control through sweeping decree powers, primary authority for drafting legislation, and control of all government appointments, most aspects of the economy, and the security forces. The Parliament (Oliy Majlis) is constitutionally the highest government body. In practice, despite assistance efforts by international donors to upgrade its ability to draft laws independently, its main purpose was to confirm laws and other decisions drafted by the executive branch.

President Karimov was elected in a limited multi-candidate election in 1991. A 1995 referendum and subsequent parliamentary decision extended his first term until 2000. He was reelected in 2000 to a second term with 92.5 percent of the vote. The OSCE declined to monitor the presidential election on the grounds that the preconditions did not exist for it to be free and fair. Following a January 2002 referendum, which multilateral organizations and foreign embassies refused to observe, the term of the presidency was extended from 5 to 7 years.

The OSCE and many international observers concluded that the 1999 legislative elections were neither free nor fair because the voters lacked a choice. Local and regional governors (hokims), whom the President appointed, exerted a strong influence on the selection of candidates and the conduct of campaigns. Nearly half (110 out of 250) of those elected were not from party lists but were either hokims themselves or were nominated by the hokims' local assemblies. Citizens' initiative groups nominated only 16 of the 250 candidates who won. These candidates generally were allowed on the ballot only if the hokims approved them. Elections for a new bicameral legislature are scheduled for December 2004.

Four registered government-controlled political parties held the majority of the seats in Parliament, and government officials held most remaining seats. These four parties, created with government assistance and loyal to President Karimov, were the only ones permitted to participate in the 1999 parliamentary elections, which did not represent a real choice for voters. Many government officials were members of the People's Democratic Party of Uzbekistan, formerly the Communist Party and still the country's largest party. The party did not appear to play a significant role in the Government, and the President resigned his chairmanship of the party in 1996. A fifth pro-government, pro-Karimov party--the Liberal Democratic Party of Uzbekistan (LDPU)--was formed during the year and quickly registered. There were reports that government employees were under pressure to support the newly founded LDPU.

The laws that govern the conduct of parliamentary and presidential elections and the Law on Political Parties make it extremely difficult for opposition parties to develop, nominate candidates, and campaign. The procedures to register a candidate are burdensome and the Central Election Commission (CEC) has authority to deny registration. A presidential candidate is prohibited from campaigning before being registered but must present a list of 150,000 signatures to be registered. Under the law, the CEC must deny registration of presidential candidates who are found to "harm the health and morality of the people." There is no appeal to the Supreme Court for candidates whose parties were denied registration. The MOJ has the right to suspend parties for up to 6 months without a court order.

Citizen initiative groups of 100 members or more may nominate candidates to Parliament by submitting signatures of at least 8 percent of the voters in the electoral district. Organizations other than those registered as political parties or initiative groups were prohibited from participating in campaigns, and candidates were allowed to meet

with voters only in forums organized by precinct election commissions. The law prohibits parties from funding their candidates' campaigns directly; parties must turn over all campaign money to the CEC, which then distributes the funds equally among the candidates. Only the CEC may prepare and release presidential campaign posters.

According to the Law on Political Parties, judges, public prosecutors, NSS officials, servicemen, foreign citizens, and stateless persons (among others) cannot join political parties. The law prohibits formation of parties based on religion or ethnicity; those that oppose the sovereignty, integrity, and security of the country and the constitutional rights and freedoms of citizens; or those that promote war, or social, national, or religious hostility. Political organizations that seek to overthrow the Government or incite national or racial hatred are prohibited.

Membership in unregistered political organizations is not officially prohibited (see Section 2.b.). During the year, the Birlik opposition political party held a series of regional and national congresses and gathered more than 5,000 signatures. According to Birlik officials, unlike previous years, the party encountered only occasional resistance from local officials. The party had not held a congress since 1991, and harassment by security forces drove its leaders into voluntary exile in the early 1990s (see Section 1.d.). In September and November, the party applied for registration, which the MOJ rejected (see Section 2.b.).

The Government also permitted the newly constituted PAPU to hold a series of regional congresses throughout the country, culminating on August 2 in a national congress, where the party approved a charter and elected an executive committee. Like Birlik, PAPU encountered only minor obstacles in its organization campaign and was able to gather more than 10,000 signatures, more than twice the number required by law for registration. In October, the MOJ rejected PAPU's registration application (see Section 2.b.).

After significant difficulties, Erk held its party congress on October 22. This, along with a press conference held on October 2, was Erk's first public event in a decade. Media reports alleged that the Government forced Erk to postpone its most recent party congress. Erk party members continued to face arrest and physical mistreatment, as well as surveillance (see Sections 1.b. and 1.d.). On August 18, two masked assailants beat Tashpulat Yuldashev, a prominent Erk party member, in his home, resulting in a concussion and bruising; police called to the scene reportedly were interested only in asking about Yuldashev's political activities. General Secretary Atanazar Arifov and other Erk members reported receiving telephone calls warning them not to attend Erk meetings. There were no developments in the case of Erk member Ilkhom Salayev and his wife Khovajon Bekjanova, who were arrested in September 2002 in connection with a civil complaint; Bekjanova was reportedly raped and beaten, and her husband, who was forced to watch, committed suicide. Erk did not apply for registration, believing its previous registration remained valid (see Section 2.b.).

On December 6, the Free Farmers Party, an opposition party that broke away from PAPU, held its organizing congress. The party reported difficulties in securing a venue for its congress, although it was eventually able to meet in a restaurant. The Free Farmers had not submitted registration papers by year's end.

The leaders of three of the four unregistered opposition political parties--Mohammed Solikh of Erk, Abdurakhim Polat of Birlik, and Babur Malikov of the Free Farmers Party--went into voluntary exile in the early 1990s. After the February 1999 Tashkent bombings, government targeting of members of these groups intensified. The Government repeatedly accused Solikh, who ran against Karimov for the presidency in 1992, of being a leader of the terrorist plot behind the bombings. Solikh was 1 of 9 defendants tried in absentia in a 2001 trial of 12 alleged conspirators. He was convicted and sentenced to 15 years in prison. Two of Solikh's brothers--Kamil and Rashid--remained in prison at year's end. In February, the Government amnestied a third brother, Muhammed Bekjonov (a.k.a. Bekzhon); a fourth brother lived in exile with Solikh abroad.

Traditionally, women participated much less than men in government and politics. There were 20 female deputies among the 212 members serving in Parliament. There was one woman among the 28 members of the Cabinet: Dilbar Gulyamova, who held the rank of Deputy Prime Minister, was charged specifically with women's issues.

In the 250-member parliament, there were 190 ethnic Uzbeks, 5 Karakalpaks, 4 Russians, 4 Tajiks, 3 Kazakhs, 3 Ukrainians, 1 Armenian, and 1 Korean.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of domestic and international human rights groups operated in the country; however, security forces continued to harass and abuse domestic human rights activists. Several human rights activists reported significant harassment during the year; some were detained and beaten (see Sections 2.b.). During the year, the Government arrested and convicted human rights activist and independent journalist Ruslan Sharipov, and unknown persons abducted and beat his defense advocate Surat Ikramov, who is also a prominent human rights activist (see Sections 1.c, 1.e., and 2.a.). During the year, several persons the Government considered politically sensitive and their families experienced difficulties obtaining exit visas (see Section 2.d.).

There were numerous credible reports that several human rights activists who participated in the May meeting of the EBRD were harassed. The security services prevented a number of activists from attending meetings, effectively placing them under house arrest. Activists who did attend the meetings reported being followed by members of the security services. There was speculation that the eldest son of Human rights activist Akmadjon Madmarov, in jail for alleged Hizb ut-Tahrir membership, was sent into an isolation cell as retribution for his father's participation in the meeting.

The following human rights activists, arrested in 2002, were released and remained free at year's end: Jakhongir Shosalimov, Tursunbay Utamuratov, Yuldash Rasulov, Musulmonqul Hamroyev, and Jora Murodov (see Section 1.d.).

In March, the Government registered a second independent human rights organization, Ezgulik. This followed the March 2002 registration of the IHROU (see Section 2.b.). Two other organizations that work on human rights issues, the Committee for Protection of Individual Rights (CPRI) and the Legal Aid Society (LAS), continued to operate as registered groups. CPRI was formed with government support in 1996, and some of its members have cooperated with the HRSU, Ezgulik, and IHROU. The LAS shifted its focus from low-level police abuse and government corruption cases and took on more high-profile human rights cases during the year, including the defense of Ruslan Sharipov and the mother of Khusnuddin Olimov.

The leadership of Ezgulik and Mazlum overlap with those of Birlik and Erk, respectively, although the two human rights groups for the most part functioned independently of the opposition parties. The CPRI, which was registered as the Uzbek affiliate of the Germany-based International Society for Human Rights, has been engaged in legitimate human rights work, although it was careful not to criticize the Government. Observers from time to time questioned the CPRI's independence from the Government; its former leader, Marat Zakhidov, had for a time engaged in progovernment propaganda. Zakhidov was serving as the Chairman of PAPU. The IHROU went through a bitter internal struggle in the spring and early summer, with a large number of its members accusing the IHROU's long-serving leader Mikhail Ardzinov of an authoritarian management style and increasingly pro-government leanings. Nevertheless, many IHROU members--both those who supported Ardzinov and a larger number who opposed him--continued to do human rights work, particularly in the regions outside Tashkent.

Other human rights groups, such as the HRSU, Mazlum, and the Mothers Against the Death Penalty and Torture have faced problems with registration but have continued to function, albeit with some difficulty (see Section 2.b.). Renting office space and conducting transactions in an unregistered NGO's name can be legally problematic; and opening bank accounts was impossible, making receiving funds from overseas very difficult. Activists of unregistered organizations tended to encounter more difficulties with authorities than their colleagues at registered NGOs. Unregistered NGOs also had problems finding venues for public events, as occurred when the hotel originally booked to host a seminar on the death penalty scheduled for December 3 abruptly cancelled, citing the unregistered status of the NGO organizing the event. International and local journalists met frequently with members of these organizations, but state-controlled media rarely mentioned them.

The Government generally did not obstruct the work of international human rights NGOs. HRW maintained an office and operated independently in the country. Freedom House, which began operations in Tashkent in 2002 and opened a branch office in the Fergana Valley in June, continued to be active in training human rights defenders; in July, it began a program to provide legal assistance to local human rights defenders. The Government was increasingly willing to work with international governmental organizations such as the OSCE, which has been involved in such human rights problems as prison reform and combating trafficking in persons, as well as with foreign embassies, the ICRC and UNHCR. At the end of December, the Government informed a number of international NGOs that they must reregister with the MOJ, rather than with the Ministry of Foreign Affairs (MFA), as they had done previously. At year's end, it remained unclear what impact this would have, although some NGO representatives voiced concern that apparently burdensome reporting and coordination requirements associated with the MOJ's new registration procedures would make it difficult for the NGOs to work effectively.

After the U.N. Special Rapporteur on Torture released his report in February stating that torture was systematic in the country and State Advisor for Foreign Policy Kamilov's public statements in March on abuses in prisons and pretrial detention facilities, officials from the MVD met with foreign ambassadors and U.N. officials to discuss the Rapporteur's recommendations (see Section 1.c.).

A human rights Ombudsman's office affiliated with the Parliament may make recommendations to modify or uphold decisions of government agencies, but the recommendations are not binding. The Ombudsman is prohibited from investigating disputes within the purview of courts. The Ombudsman has eight regional offices outside Tashkent. During the year, the Ombudsman's office handled hundreds of cases, a large majority of which dealt with contested court decisions, abuse of power, and various labor and social welfare issues. The Ombudsman published reports identifying the most serious violations of human rights by government officials; the majority of these involved allegedly unjust court decisions and claims of abuse of power by police and local officials. Most of the successfully resolved cases appeared to have been relatively minor.

The National Human Rights Center of Uzbekistan, created by presidential decree, is responsible for educating the population and government officials about the principles of human rights and democracy, as well as for ensuring compliance with its international obligations in providing information on human rights.

Section 5 Discrimination Based on Race, Sex, Disability, Language or Social Status

Both the Constitution and the law prohibit discrimination on the basis of sex, language, or social status; however, societal discrimination against women persisted.

Women

Violence against women was a problem and spousal abuse was common, although no statistics were available. Wife beating was considered a personal family affair rather than a criminal act; such cases usually were handled by family members or elders within the community (mahalla) and rarely came to court. Emphasis was placed on reconciling husband and wife, rather than addressing the abuse. The law punishes physical assault; however, no legal provisions specifically prohibit domestic violence. Police often discouraged women from making complaints against abusive husbands and abusers were rarely taken from home or jailed. A September HRW report on mahalla committees concludes that although neighborhood committees played no formal role in divorce proceedings, in practice, women frequently were unable to obtain a divorce without the committee's approval, which was seldom granted even in cases of obvious abuse.

A 2000 NGO study on domestic violence in the country concluded that domestic violence was widespread. Winrock International, which helps develop women's organizations in the country, noted that public officials were willing to speak openly about the problem of domestic violence. Most NGOs who worked on domestic violence issues reported that local government cooperation on education programs had increased, with a number of initiatives taken to increase cooperation with mahalla committees. Some police participated in NGO training on this issue.

The law prohibits rape. Marital rape appears to be implicitly prohibited under the law, but no known cases have been tried. Although statistics were unknown, cultural norms discouraged women and their families from speaking openly about rape.

Although the law prohibits prostitution, it was a problem in the country, and many observers believed that deteriorating economic conditions led to an increase in prostitution. There were more ethnic minorities engaged in prostitution. Police enforcement of laws against prostitution was uneven, and some police officers used the threat of prosecution and other forms of harassment to extort money from prostitutes.

The Government made progress in combating trafficking in women to other countries for the purpose of prostitution (see Section 6.f.).

The law does not prohibit sexual harassment. Social norms and the lack of legal recourse made it difficult to assess the scope of the problem.

Although the law prohibits discrimination against women, traditional, cultural, and religious practices limited their role in everyday society. For these reasons, women were severely underrepresented in high-level positions. In accordance with tradition, women--particularly in rural areas--usually married before the age of 20, bore many children, and confined their activities to within the family. In rural areas, women often worked in the cotton fields during the harvest season. However, women were not impeded formally from seeking a role in the workplace, and women who opened businesses or sought careers were not hindered legally. Women were underrepresented in the industrial sector; however, they were fairly well-represented in the agricultural and small business sectors. A deputy prime minister at the cabinet level was charged with furthering the role of women in society and also was head of the National Women's Committee.

Several dozen NGOs addressed the needs of women. NGOs in Tashkent, Termez, and Fergana conducted seminars on sexual harassment, domestic violence, and the legal rights of women. Another NGO in Tashkent operated a hotline for women involved in prostitution. A center in Samarkand operated a crisis hotline and provided educational services on alcoholism, sexually transmitted diseases, and family counseling. The American Bar Association operated programs that focused on protecting women's legal rights in the Fergana region. A women's group in

Surkhandarya worked with women with disabilities and promoted their rights. Another organization, Women's Integrated Legal Literacy, worked in the following areas: Legal literacy training, small grants for women's NGOs, cultural events to educate women on their rights, and advocacy on women's issues.

In parts of the country, some women and girls resorted to suicide by self-immolation. There were no reliable statistics on the extent of this problem because most cases went unreported. After marriage many women or girls moved into the husband's home, where they occupied the lowest rung on the family social ladder. A conflict with the husband or mother-in-law, who by tradition exercised complete control over the young bride, usually was the stimulus for suicide. The NGO "Umid" (also known as the Interregional Rehabilitation Center) in Samarkand ran a shelter for victims of self-immolation. UMID also worked with trafficking victims and was involved in the rehabilitation of commercial sex workers. The NGO reported varying degrees of cooperation from individual officials and local governments.

A 1997 research study indicated that the number of women enrolling in higher education was diminishing; women's enrollment in the finance and banking institute dropped from 65 percent in 1991 to approximately 25 percent in 1997. The report stated that university faculty "steer" women into occupations traditionally performed by females and suggested that administrators may have deliberately barred entrance to women in some fields. A steep, government-mandated increase in university fees enacted in 2002 forced many more families to decide which, if any, of their children they would educate, possibly affecting women's access to higher education. This trend has continued as the number of "contract students," those who pay full tuition at universities, continued to grow.

Children

The Constitution provides for children's rights, stating that parents are obliged to support and care for their children until they reach age 18. Traditional values reinforced the cohesion of families; in most cases, several generations of a family lived together. Article 41 of the Constitution provides for free compulsory education through secondary school; however, in practice, shortages and budget difficulties meant that many expenses related to education must be paid for privately. Likewise, teachers, who earned extremely low salaries, routinely demanded regular payments from students and their parents. Twelve years of formal schooling are compulsory, and the average length of schooling is more than 11 years. According to the Government, 98.1 percent of children completed secondary school. Anecdotal evidence indicated that more children continued to drop out of high and middle schools as economic circumstances continued to deteriorate. There also was evidence that earlier marriages among young rural women contributed to a higher drop out rate for young women. The Government granted monetary allowances to families based on their number of children. The country had a very high birth rate; more than one-half of the population was under the age of 18.

There were reports of abuse of children. Child abuse was generally considered an internal family matter, although elders on mahalla committees frequently took an interest at the local level. There were no government-led campaigns against child abuse, although efforts to combat human trafficking involved the protection of underage victims.

There were reports that some girls were trafficked from the country for the purpose of prostitution (see Section 6.f.). Teenage girls were engaged in prostitution. During the harvest, some school children, particularly in rural areas, were forced to work in the cotton fields (see Section 6.c.).

Information on displaced children was difficult to obtain. There were reports of displaced persons, including children, in Surkhandarya, along the border with Tajikistan (see section 1.d.). Conditions in these villages reportedly have improved, and children had access to schooling.

Persons with Disabilities

The law provides for support for persons with disabilities and is aimed at ensuring that these persons have the same rights as other citizens; however, little effort was made to bring persons with disabilities into the mainstream. There was some societal discrimination against persons with disabilities. Children with disabilities were generally segregated into separate schools. The Government cared for the persons with mental disabilities in special homes. The Government has not mandated access to public places for persons with disabilities; however, there was some wheelchair access throughout the country.

National/Racial/Ethnic Minorities

Government statistics dating from 1992 show that the population was approximately 71 percent Uzbek, 8 percent Russian, 5 percent Tajik, 4 percent Tatar, and 3 percent Kazakh, with many other ethnic groups represented as well. During the year, the percentage of Russians and Tatars decreased through emigration, but a number of Russians returned to the country. Exact percentages of ethnic minorities were unknown but were certainly lower than in 1992. Available statistics almost certainly underestimated the actual number of ethnic Tajiks; the figures treated ethnic Tajiks whose native language was Uzbek as ethnic Uzbeks. In addition, some members of other ethnic groups chose for a variety of reasons to declare themselves to be ethnic Uzbeks.

Ethnic groups other than Uzbeks, particularly Russians, frequently complained that job opportunities were limited for them. Senior positions in the government bureaucracy and business generally were reserved for ethnic Uzbeks, although there were numerous exceptions to this rule.

The citizenship law does not impose language requirements for citizenship; however, the language issue remained very sensitive. Uzbek was declared the state language, and the Constitution requires that the President speak Uzbek; however, the language law provides for Russian as "the language of interethnic communication." Russian was spoken widely in the main cities, and Tajik was spoken widely in Samarkand and Bukhara. The law originally required that Uzbek would be the sole method of official communication by 1998 but subsequently was modified to remove a specific date. The Government also began the process of replacing the Cyrillic alphabet with the Latin alphabet; however, realizing the difficulties for Uzbeks and minorities alike, the Government delayed the full transition to both the Uzbek language and the Latin alphabet to 2005.

In the past, the Government's suppression of groups and individuals tied to the IMU included a small number of Uighur separatists, primarily from China, who fought with the IMU in Afghanistan. However, as a group, the Uighurs have not suffered harassment or social or political discrimination based on their ethnic identity. Linguistically, Uighur is extremely close to Uzbek. Intermarriage was common, and the Uighurs were widely considered to be quite prosperous. There were no barriers professionally, including in government service. The Government has been generally supportive of Uighur cultural activities.

Section 6 Worker Rights

a. The Right of Association

The law specifically provides that all workers have the right to form and join voluntarily unions of their choice and that trade unions themselves may associate voluntarily by geographic region or industry sector; however, workers did not do so in practice. Membership in trade unions is optional. The law declares all unions independent of governmental administrative and economic bodies (except where provided for by other laws); it also states that trade unions should develop their own charters, structure, and executive bodies and organize their own work. However, in practice, the overall structure of trade unions has not changed significantly since the Soviet era. Trade unions remained centralized hierarchically and dependent on the Government. No alternative union structures or independent unions exist.

There were a few professional associations and interest groups, such as a union of entrepreneurs, a union of renters, and an association of private physicians and pharmacists. There also were registered professional associations for judges and lawyers, both of which were quasi-governmental. The main activity of all registered associations was professional development. They did not license members and had no formal role in advocating the interests of members in relation to the Government.

According to the law, the Council of the Federation of Trade Unions (CFTU) has a consultative voice in the preparation of all legislation affecting workers and is entitled to draft laws on labor and social issues. Trade unions are described legally as organizations that defend the right to work and to protect jobs, and emphasis is placed on the unions' responsibility for "social protection" and social justice--especially unemployment compensation, pensions, and worker retraining.

The law prohibits discrimination against union members and their officers.

The law on unions provides that unions may choose their own international affiliations; however, none have done so.

b. The Right to Organize and Bargain Collectively

Unions and their leaders were not free to conduct their activities without interference from the Government. Although laws exist to safeguard the right to organize and to bargain collectively, they were not adequate to protect this right in practice. Trade unions were state-organized institutions and had little influence, although they did have some input on health and work safety issues.

Trade unions may conclude agreements with enterprises; however, progress in privatization was very limited and collective bargaining did not occur. As a result, there was no experience with negotiations that could be described as adversarial between unions and private employers. The State was still the major employer, and the state-appointed union leaders did not view themselves as having conflicts of interest with the State.

The Ministry of Labor and the Ministry of Finance, in consultation with the CFTU, set the wages for various categories of government employees. In the small private sector, management established wages or negotiated them with those who contract for employment.

The trade union law does not mention strikes or cite a right to strike; however, the law does give the unions oversight for both individual and collective labor disputes, which are defined as those involving alleged violations of labor laws, worker rights, or collective agreements.

Unlike previous years, there were at least two major strikes. On July 21, approximately 300 female employees of a rubber plant in the industrial city of Angren staged a 1-day strike to protest unpaid wages. The Government reacted by paying the strike leaders, who then persuaded the workers to return to their jobs. On August 11, between 2,000 and 4,000 workers from the Fergana Oil Refinery staged what was reported to be the largest mass protest in the

country's history. The workers claimed that they had not been paid in 6 months. National authorities took a cautious approach to the workers, agreeing to pay at least part of their back wages, but there were reports that many unresolved issues remained and that the situation remained tense at year's end.

In August and September, bazaar vendors, who were not organized into unions, held strikes throughout the country. The vendors were upset about newly implemented tax laws and stall rental prices.

There are no export processing zones.

c. Prohibition of Forced or Bonded Labor

Article 77 of the Constitution specifically prohibits forced or bonded labor, including by children, except as legal punishment or as specified by law; however, there were reports that such practices occurred (see Sections 6.d. and 6.f.).

d. Status of Child Labor Practices and Minimum Age for Employment

Article 77 of the Labor Code, dedicated to child labor, mandates that the minimum working age is 14. Work must not interfere with the studies of those under 18. Children between the ages of 14 and 16 may only work 20 hours per week when school is not in session and 10 hours per week when school is in session. Children between the ages of 16 and 18 may work 30 hours per week while school is not in session and 15 hours per week while school is in session. In rural areas, younger children often helped to harvest cotton and other crops (see Section 6.c.).

The Government has not ratified International Labor Organization (ILO) Convention 182 on the worst forms of child labor; however, as a member of the ILO, the country is subject to overlapping obligations such as Article 29 concerning forced labor.

The large-scale compulsory mobilization of youth and students to help with the cotton harvest during the fall--a practice that dates back to Soviet days--continued to occur in some areas. Student labor in the cotton fields was paid poorly, and students sometimes were required to pay for their food. Human rights activists reported that local officials beat some teachers who objected to their students being removed from class to participate in the harvest.

The prosecutor's office and the Ministry of Labor (MOL) were the principal bodies responsible for enforcing child labor laws. The MOL maintained a system of inspectors who were responsible for reporting violations to the prosecutor's office. The law provides for a range of criminal and administrative sanctions to punish violators; however, these were not adequate to punish or to deter violations related to the cotton harvest. There were no reports of prosecutions or administrative sanctions resulting from such inspections.

e. Acceptable Conditions of Work

The Ministry of Labor, in consultation with the CFTU, sets the minimum wage. By year's end, the minimum wage was approximately \$5.40 per month (5,400 soum). The minimum wage did not provide a decent standard of living for a worker and family. Average government salaries were approximately \$35 to \$40 (35,000-45,000 soum).

The standard workweek was set at 41 hours and required a 24-hour rest period. Some factories apparently reduced work hours to avoid layoffs. Overtime pay exists in theory but was not usually paid in practice. Payment arrears of 3 to 6 months were not uncommon for workers in state-owned industries, and the problem appeared to be growing,

including among government office workers and officials.

The Labor Ministry establishes and enforces occupational health and safety standards in consultation with the unions. The local press occasionally published complaints about the failure of unions and government authorities to do enough to promote worker safety. Although written regulations may provide adequate safeguards, workers in hazardous jobs often lacked protective clothing and equipment. Workers are permitted to leave jobs that are hazardous without jeopardizing their employability in other jobs; however, in practice, high rates of underemployment made such action difficult.

f. Trafficking in Persons

The law prohibits trafficking in persons; however, trafficking in women and girls from the country for the purpose of prostitution was a problem. A few NGOs reported that some local officials were involved in trafficking on a limited basis.

The law prohibits all forms of trafficking, including of minors, and provides for penalties, including prison sentences of 5 to 8 years for international trafficking. Recruitment for trafficking is punishable by 6 months' to 3 years' imprisonment and fines of up to approximately \$900 (900,000 soum). The recruitment charge could be levied against international or domestic traffickers. All law enforcement agencies are charged with upholding the anti-trafficking provisions of the criminal code. By year's end, law enforcement reported they had investigated several dozen cases of trafficking and convicted a total number of 80 persons for trafficking-related crimes.

The Government took significant measures to combat trafficking in persons, including establishing an inter-agency working group, producing an action plan on combating trafficking, actively cooperating with NGOs and the OSCE on anti-trafficking training for law-enforcement and consular officials, and working with NGOs to produce an effective public awareness campaign. In addition, the Government, in cooperation with NGOs and international organizations, began to train law enforcement and mahalla officials in identifying and protecting victims of trafficking. The national police assisted in the formation of an anti-trafficking NGO run by retired police officers and dedicated to researching the issue. The Government directed border guards at airports to give more scrutiny to unaccompanied young women traveling to Turkey, the United Arab Emirates (UAE), South Korea, Malaysia, and Indonesia; it authorized them to deny such women permission to leave the country.

The country was primarily a source for the trafficking of women and girls for the purpose of prostitution. However, there were also reports of men being trafficked to illegal labor markets in Kazakhstan and Russia, mainly in the construction and service sectors. There were no reliable statistics on these problems, and it did not appear to be widespread, although anecdotal reports from NGOs indicated that the number of young women from the country who were trafficked into prostitution abroad was growing. Many women were unwilling to come forward due to both societal pressure and the fear of retaliation from their traffickers. There were credible reports that women traveled to the Persian Gulf, Malaysia, South Korea, Thailand, Turkey, and Western Europe for the purpose of prostitution; some of them reportedly were trafficking victims. Some transit of trafficked persons may also have taken place from neighboring countries and to or from countries for which Uzbekistan was a transportation hub (Thailand, Malaysia, Indonesia, India, Korea, and the UAE).

Traffickers most often targeted young women between the ages of 17 and 30. Agents in nightclubs or prostitution rings solicited these women, many of whom previously engaged in prostitution. In large cities such as Tashkent and Samarkand, newspaper advertisements for marriage and work opportunities abroad were connected to traffickers. Travel agencies promising tour packages and work in Turkey, Thailand, and the UAE also solicited prostitutes. There

were reports that in some cases traffickers recruited women with fraudulent job offers abroad, including as dancers or waitresses in nightclubs or restaurants, and in some cases they may have confiscated travel documents once the women reached the destination countries.

Some local officials working at the MVD, Customs, and Border Guards reportedly accepted bribes in return for ignoring their instructions to deny exit to young women they believe to be traveling abroad to work as prostitutes. According to local sources, officials were involved in document fraud and accepted bribes from persons attempting to travel illegally or from the traffickers themselves. One NGO reported that some local officials, operating on a relatively small scale, were helping women, some of whom may have been trafficked, obtain false passports to travel to Dubai to work as exotic dancers or prostitutes.

The Consular Department of the Ministry of Foreign Affairs reported that it began developing an assistance and repatriation program designed to make it easier for trafficking victims abroad to return. One NGO reported that police, consular officials, and border guards began to notify it of any women returning from abroad who appeared to be possible trafficking victims. The NGO was also allowed to assist groups of women returning from abroad at the airport and help them through entry processing.

Two NGOs specifically addressed trafficking in persons, and other NGOs attempted to collect information to combat trafficking. The OSCE Tashkent office, in cooperation with foreign embassies, NGOs, and the Government, was very active in combating trafficking. OSCE held a series of training seminars for Uzbek government law enforcement, including officers from the NSS, MVD, MFA, Customs, Border Guards, and the Officer of the General Prosecutor. It also provided training for several trafficking-focused NGOs, organized roundtables to discuss project ideas, and provided small-grant funding to various NGOs. In September, OSCE organized a study tour to Ukraine for government officials to exchange ideas and experiences in combating human trafficking.

An increased number of targeted newspaper articles discussing trafficked women and prostitution appeared in state-controlled newspapers; however, advertisements soliciting women's participation in such schemes appeared in these same publications. The state radio also continued airing a weekly call-in show for women who were involved in the sex trade. State-owned television stations worked with local NGOs to air public announcements on trafficking and to advertise seven regional hotlines run by NGOs to counsel victims and potential victims of trafficking. The Government likewise worked with NGOs to design posters on the dangers of trafficking and to place these posters on public buses and in passport offices and consular sections abroad.

The Office of Website Management, Bureau of Public Affairs, manages this site as a portal for information from the U.S. State Department.

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